

Mahtab Hasan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · Writ - C No. 42595 of 2019 · **Writ disposed; petitioner to file objections before EE; speaking final order; coercive action stayed; s.127 appeal if aggrieved.**

HEADNOTE

A writ seeking to quash an electricity assessment notice, on the plea of no hearing and non-compliance with the U.P. Electricity Supply Code, 2005, was disposed of without examining the notice on merits. The consumer was directed to appear before the Executive Engineer with objections; a speaking final order was required; coercive recovery was stayed in the interim; and a Section 127 appeal was left open against that final order.

FACTUAL SUMMARY

Mahtab Hasan, a consumer, approached the Allahabad High Court against an assessment notice dated 5 October 2018 issued by the electricity authorities. He sought certiorari to quash that notice, alleging that coercive recovery was underway without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the Electricity Department was heard. The Division Bench disposed of the petition the same day without a merits finding on the notice.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

assessment-notice-hearing-then-section-127-appeal

HOLDING

Without quashing the assessment notice or deciding the alleged Supply Code breach, the Court directed the consumer to appear before the Executive Engineer on 09.01.2020 with objections and evidence; the Engineer must pass a speaking final order within four weeks; coercive action is stayed for six weeks or till disposal of the objection, whichever is earlier; if aggrieved by the final order the consumer may appeal under Section 127 of the Electricity Act, 2003; non-appearance revives the recovery citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The Court did not decide the assessment notice in writ and, after directing a speaking final order on the consumer's objections, left it open to the petitioner if still aggrieved to appeal under Section 127. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment Section 127 was reserved for after the Executive Engineer passed a speaking final order on the objections to the assessment notice, not as a substitute for that final order or as an appeal against the notice itself. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT NOTICE DATED 05.10.2018 WAS ISSUED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The notice was not quashed; the Court directed a hearing and a speaking final order instead. ¶ 1

NOT DECIDED — MERITS OF THE ASSESSMENT AND THE RECOVERY CITATION

¶ 1

